

Belgium - Prevention of Money Laundering Obligations, Cash Limits and Sectoral Duties

Customer due diligence, UBO register, cash payment ceilings, diamond trade and port-linked commerce

Document ID	BE-REG-018
Document type	National regulation summary
Jurisdiction code	BE
Applies to corridors	Transactions with origin or destination in BE
Issuing body (simulated)	Belgian Financial Information Processing Authority (simulated)
Version / effective date	v1.0 - 2026 consolidated text (simulated)
Modelled on public sources	Belgian Law of 18 September 2017 on the prevention of money laundering, National Bank of Belgium and FSMA supervisory circulars, and the UBO register framework, publicly available
Classification	SYNTHETIC - HACKATHON TRAINING DATA

This document is synthetic content authored for a multi-agent fraud intelligence hackathon. It paraphrases the structure and themes of public materials (Belgian Law of 18 September 2017 on the prevention of money laundering, National Bank of Belgium and FSMA supervisory circulars, and the UBO register framework, publicly available) but contains no verbatim reproduction of them. Thresholds, codes and identifiers are illustrative.

1. Obligated entities and supervision

Credit institutions, payment and electronic money institutions, insurers and intermediaries, investment firms, currency exchange offices, virtual asset service providers, notaries, bailiffs, lawyers in defined transactions, auditors, accountants, tax advisers, estate agents, casinos, and dealers in diamonds and other high-value goods are obliged entities. Prudential supervisors and sectoral supervisors each issue their own implementing circulars; the financial intelligence unit receives reports from all sectors.

As a Member State, the Union framework applies in full, so EU-GL-002 shall always be retrieved together with this document. The provisions below are the national additions and specifications that the Union framework leaves to national law.

2. Due diligence and the UBO register

Situation	Threshold	Requirement
Business relationship	Any amount	Identification and verification before the relationship starts
Occasional transaction	10,000 EUR or more, single or linked	Full identification
Transfer of funds	1,000 EUR or more	Full identification and originator information
Casino and gaming operations	2,000 EUR or more	Identification on entry and on the transaction

Situation	Threshold	Requirement
Dealers in high-value goods accepting cash	3,000 EUR or more (subject to the general cash ceiling)	Identification and enhanced record keeping

- Legal entities, trusts and similar arrangements must register their ultimate beneficial owners in the national UBO register and keep the entry current.
- Obligated entities must consult the register before establishing a relationship and must report any discrepancy between the register and the information they hold; a discrepancy report is administrative and is separate from a suspicion report.
- Supporting documents evidencing the UBO determination must be retained and made available to the supervisor.

3. Cash restrictions and the diamond sector

- Payments for goods or services between a consumer and a trader may be settled in cash only up to the statutory ceiling of 3,000 EUR, with the balance settled by traceable means. Splitting a single transaction across instalments to remain below the ceiling constitutes evasion.
- The sale of immovable property may not be settled in cash in any part; the notary must report any attempt.
- Registered diamond traders are subject to a dedicated regime including registration with the sectoral authority, transaction record keeping identifying the parcel, weight and grading, and reconciliation of stock movements against settlements.
- Dealer-to-dealer stone transactions with minimal margin and no evidence of physical movement or vaulting are treated as a trade-based laundering indicator and cross-referenced with counterpart trading centres.

4. Reporting

Reports of suspicion are transmitted to the national financial intelligence unit, which may oppose the execution of a transaction for a limited statutory period in order to allow the prosecutor to act. During an opposition the funds may not be released. Informing the customer of a report is prohibited.

- Reporting is required where there is knowledge or suspicion that funds are linked to laundering, to a predicate offence, or to terrorist financing, irrespective of amount.
- Specific reporting applies where a customer or transaction is linked to a high-risk third country, or where the customer refuses to provide UBO information.
- Records of identification, transactions and analyses are retained for ten years from the end of the relationship.

5. Local red flags

- Diamond trader settling successive purchases with counterparties in another trading centre at margins below 2%, without shipping, customs or vaulting evidence.
- Import or forwarding company linked to port activity whose payment values do not reconcile with declared container volumes or customs entries.
- Attempted cash settlement just below the 3,000 EUR ceiling repeated across instalments of the same commercial relationship.

- Entity whose UBO register entry names only a senior managing official while the ownership chain runs through two or more non-EU holding layers.
- Account of an international association or representative office receiving inbound transfers from unrelated jurisdictions and disbursing them onward without an evidenced programme.
- Real estate purchase where part of the price is proposed in cash or through a non-resident structure with no local economic connection.